

A private person may bring an action to enforce Proposition 65 in the public interest after notice to public enforcement agencies. (Health and Safety Code § 25249.7(d).) Any settlement of such an action must be submitted to the court for review and approval to ensure protection of public interest and that the settlement is fair and reasonable. (Health and Safety Code § 25249.7(f)(4); *Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 46, 49.)

In considering the settlement, the court must also make all of the following findings under Health and Safety Code § 25249.7(f)(4):

(A) The warning that is required by the settlement complies with Proposition 65;

(B) The award of attorney's fees is reasonable under California law; and

(C) the penalty amount is reasonable based on the Health and Safety Code § 25249.7(b)(2) criteria.

Here, Plaintiff alleges that Defendant AU ENERGY, LLC. failed to provide requisite warning notices at two of its gas stations located in Solano County. This case settled, along with three other actions in other counties, encompassing a total of 12 or 120 gas stations owned by AU ENERGY, LLC.

Defendant has agreed to provide notices consistent with the safe harbor language established by the State of California. (See Title 27, CCR, §§ 25607.26, 25607.27.) Defendant agrees to pay a penalty of \$3,000 per gas station. Defendant agrees to pay Plaintiff \$15,000 inclusive of attorney's fees and costs. Costs were \$955.10, leaving an award of attorney's fees of \$14,044.90 which results in a lodestar hourly rate of \$369.60 based upon 38 hours expended.

The court finds the settlement is reasonable and meets each of the statutory criteria.

JEMERSON v. LIGHTHOUSE AT BRIDGEPORT OWNERS ASSN.
Case No. CU24-08429

Motion for Leave to File Amended Answer

TENTATIVE RULING

CRC 3.1324(a)(1) requires a party moving for leave to file an amended pleading to include a copy of the proposed amended pleading.

While the declaration filed in support of the motion purports to attach both a copy of the original answer and the proposed first amended answer, neither were actually attached to the motion papers filed with the court.

In addition, Plaintiff failed to include notice of the court's tentative ruling system as required by Local Rule 3.9(d).

This motion is DENIED WITHOUT PREJUDICE.

The parties should further meet and confer. Given the policy that a timely amendment to an operative pleading is generally allowed when it is not unreasonably delayed causing undue prejudice, the parties should consider stipulating to the filing of an amended answer.

NUNEZ v. FIRST CAL FOODS, LLC, dba DENNY'S
Case No. CU25-06124

Motion for Sanctions under CCP Section 128.7

TENTATIVE RULING

Defendant's motion for sanctions under CCP Section 128.7 is DENIED.

It appears that plaintiff did not work for defendant for at least twelve months before she went on maternity leave, and therefore, she was not an "eligible employee" who was entitled to have her employment position held for her for four months while she was on leave under the California Family Rights Act ("CFRA"; Govt. Code §§ 12945.1-12945.2; 2 CCR § 11046.) Further, Plaintiff did not seek to return within four months after initiating leave due to pregnancy, childbirth or related medical condition. (Govt. Code § 12945 ("PDLL").)

But, the complaint includes other allegations not dependent upon CFRA and PDLL. For example, in addition to the wage and hour claims, plaintiff alleges defendant failed to reasonably accommodate her when she complained of pain due to standing for extended periods while pregnant.

Sanctions are proper only if the "pleading, motion or paper" is without merit. The fact that one of the arguments is frivolous does not justify sanctions. (See e.g. The Rutter Group, California Practice Guide, Civil Procedure Before Trial §§ 9:1159.1 and 9:1179; see also *Golden Eagle Distributing Corp. v. Burroughs Corp* (9th Cir. 1986) 801 F2d 1531, 1540 [interpreting FRCP 11].)

LESLEY SYRETT v. LUXOTTICA OF AMERICA, INC. and LORRAINE CHAMPLAIN
Case No. CU25-06158

Defendants' Motion to Compel Arbitration

TENTATIVE RULING

The motion of Defendants LUXOTTICA OF AMERICA, INC. ("LUXOTTICA") and LORRAINE CHAMPLAIN to compel arbitration of Plaintiff LESLEY SYRETT's complaint alleging violations of the Fair Employment and Housing Act and wage and hour law is GRANTED.